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IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-33322-2026
Decided On: 12.06.2026

KULWANT SINGH

....PETITIONER(S)

VERSUS

STATE OF PUNJAB

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Aditya Anand, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.112 dated 15.05.2026 under Sections 115(2), 118(1), 118(2), 351(1), 351(2), 351(3) and 3(5) of BNS, 2023 registered at Police Station Subhanpur, District Kapurthala.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case, as only simple injuries have been attributed to the petitioner that too, on non vital parts of the body i.e. on ring finger of right hand and thumb and ring finger of left hand. Further, even the grievous injury i.e. injury No.1 is specifically attributed to accused-Tejinder Singh @ Laddu, is also on a non vital part of the body. The petitioner further submits that he is ready and willing to join the investigation.

Notice of motion.

On behalf of the State

On the asking of the Court, Mr. Satjot Singh, AAG Punjab accepts notice on behalf of the respondent–State and vehemently opposes the prayer made by learned counsel for the petitioner on the ground that the injuries were caused with the sharp weapon.

3. Analysis

Considering the nature of the allegations, the fact that only simple injuries have been attributed to the petitioner, whereas the grievous injury has been specifically attributed to co-accused Tejinder Singh @ Laddu, and also taking into consideration the statement of learned counsel for the petitioner that he is ready and willing to join the investigation, this Court is of the view that the custodial interrogation of the petitioner is not warranted at this stage.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

- (ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;
- (iii) a condition that the person shall not leave India without the previous permission of the Court;
- (iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.'

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

12.06.2026

NainaRajput

Whether speaking/reasoned	: Yes/No
Whether reportable	: Yes/No